



THE POSH DEFENSIBILITY AUDIT • PRACTITIONER EDITION

WOULD YOUR CASE FILE **HOLD UP?**

You receive the complaint, support the IC, and hold the case file. When a matter is challenged, it's the case file that gets examined - and in 2025, courts read files exactly this way: how the process ran, not just what it concluded. With the NCW now recommending annual PoSH audits reported to District Authorities, the case file will be read either way.

Pull your most recent case file and check it against these ten. **Score one point for every unqualified "yes."**

01 Was intake done in writing, and the complaint classified?

YES ☐ NO ☐

Receipt acknowledged, limitation under Section 9 checked (courts enforce it strictly), and a documented decision: PoSH, grievance, or misconduct. Stretching PoSH over every workplace wrong weakens the case.

02 Was the committee right for this case?

YES ☐ NO ☐

Quorum confirmed, external member present, tenure current, and every member screened for conflicts before the first step - on the record.

03 Does the case file prove the clock was managed?

YES ☐ NO ☐

Notice and complaint copy to the respondent within seven days, inquiry and report within statutory periods - a timeline sheet in the case file, not a memory.

04 Was interim relief considered, and the complainant protected?

YES ☐ NO ☐

Considered on the record even if declined. No transfer, pay change, or role change during pendency - courts treat retaliation as a violation in itself.

05 Did every interview have a plan, and a proper opening?

YES ☐ NO ☐

A documented plan before the interview. Roles, process, and confidentiality explained in the first ten minutes, with the explanation itself recorded.

06 Does the record show the questions, not just the answers?

YES ☐ NO ☐

Proceeding sheets, statements signed by parties and IC members, and a documented opportunity to respond to the other side's statements.

07 Was conduct assessed on impact, not intent?

YES ☐ NO ☐

The reasonable-woman standard applied to how the conduct was experienced. Consistent, credible testimony given real weight, even without CCTV or emails.

08 Were the findings reasoned and shared before finalising?

YES ☐ NO ☐

Balance of probabilities stated, credibility reasons written down, and parties given the chance to respond to findings before the final report went to the employer.

09 Was closure completed, not just announced?

YES ☐ NO ☐

Recommendations implemented time-bound, confidentiality under Section 16 maintained and documented throughout, the docket sealed and complete, and the matter reflected in the annual report filing.

10 Did the case file teach the organisation anything?

YES ☐ NO ☐

A systems note on the conditions behind the complaint - reporting pathways, team dynamics, leadership signals - and at least one thing that changed as a result.

YOUR SCORE

9-10

A case file that defends itself. Pressure-test it - questions get harder under cross-examination than in a self-audit.

6-8

Gaps a tribunal would find. Each "no" is a specific procedural vulnerability, and they compound.

0-5

Exposure. The conclusion may be right, but the case file wouldn't survive the scrutiny it's about to get.

A checklist can show you the gap. Closing it is capability work. AWI-aligned investigation methodology, in-depth interview training with IMS Australia, and expert system diagnostics that prevent the next complaint - [worqsense.com](https://www.worqsense.com) | vidya@worqsense.com | +91 7736796809

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